N/A
V Fire safety

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3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery

N/A
V Fire safety

N/A
VI Crew protection

N/A
VII Life-savings
appliances

5) 5 years
VIII Emergency
procedures

5 years
IX Radiocommunications

10 years
X Navigational
equipment

5 years

Notes:
1) The flag Administration may decide to use gross tonnage (GT) in place of vessel length (L) as the basis for measurements for all chapters (regulation I/1(2)).

2) A new vessel is a vessel built after the entry into force of the Agreement (regulation I/2(1)).

3) A Party may, in accordance with a plan, progressively implement the provisions of chapters VII, VIII, IX and X on existing vessels (regulation I/1(4) to (5)).

4) The only requirements of chapter I that apply to existing vessels are in regulations I/2 to 5.

5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and
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5) The only requirements of chapter VII that apply to existing vessels concern handheld VHFs and radar transponders (regulations VII/1(2) and VII/13 to 14).

Exemptions (regulation I/3)

3.1.10 The Agreement offers several possibilities to Administrations to exempt vessels from its requirements.

3.1.11 Administrations may exempt any vessel which embodies features of a novel kind from any of the requirements of chapters II, III, IV, V, VI and VII according to conditions provided in regulation I/3(1). The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(1) and I/3(4) provide further details on this.

3.1.12 Exemptions from the requirements of chapter IX are dealt with in regulation IX/3 and exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to
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exemptions from chapter X are dealt with in regulation X/2. The particulars of such exemptions, to the extent necessary to confirm that the level of safety is adequately maintained, shall be communicated to the Organization. Regulations I/3(2) and I/3(4) provide further details on this.

3.1.13 Administrations may exempt any vessel from any of the requirements of any chapter of the Agreement, if they consider that the application is unreasonable and impracticable in view of the type of vessel, the weather conditions and the absence of general navigational hazards, provided:

.1 the vessel complies with adequate safety requirements for the service for which it is intended and are such as to ensure the overall safety of the vessel and persons on board;

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it is intended and are such as to ensure the overall safety of the vessel and persons on board;

.2 the vessel is operating solely in: (i) a common fishing zone under the jurisdiction of neighbouring States; or ii) the EEZ of the flag State; or (iii) the EEZ or a marine area under the jurisdiction of another State, in accordance with an agreement between the States concerned in accordance with international law; and

.3 the Administrations notify the Organization of the terms and conditions on which such exemption is granted.

3.1.14 Regulation I/3(3) provides more detailed information on this.

Equivalents (regulation I/4)

3.1.15 Instead of following the requirements of the Agreement regarding a particular fitting, material, appliance or apparatus, or type thereof, to be fitted or carried in a vessel, the Agreement permits the Administration to allow equivalents. This is if the Administration is satisfied by trial
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permits the Administration to allow equivalents. This is if the Administration is satisfied by trial thereof or otherwise that an equivalent is at least as effective. The particulars of such equivalents, together with a report on any trials made, shall be communicated to the Organization.
Regulation I/4 provides further details on this.

Repairs, alterations and modifications (regulation I/5)

3.1.16 A vessel that undergoes repairs, alterations, modifications and related outfitting shall continue to comply with at least the requirements previously applicable to the vessel.

3.1.17 Repairs, alterations and modifications of a major character and related outfitting shall meet the requirements for a new vessel only to the extent of such repairs, alterations and modifications and as the Administration deems reasonable and practicable.

3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

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3.1.18 "Repairs, alterations and modifications of a major character" is understood, by way of examples:

.1 any change that substantially alters the dimensions of a vessel, e.g. lengthening by adding new mid-body; or

.2 any change that substantially increases the efficiency of a vessel and/or prolongs the vessel's service life, e.g.:

.1 renewal of more than 50% of crew accommodations;

.2 renewal of propulsion machinery and/or wheelhouse;

.3 renewal of deck machinery and/or winch system;

.4 renewal of fish processing equipment; and

.5 renewal of refrigeration systems for the preservation of the catch.

3.1.19 Regulation I/5 provides further details on this.
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
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Summary assistance table for implementation

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Summary assistance table for implementation

Regulation to
implement Content
III Code (resolution A.1070(28))
Supportive tools
Function Implementation reference